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June 25, 2025

George W. Wright*
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VIA EMAIL

Richard C. Ambrow Jr.
Office of Administrative Law Judges
Federal Maritime Commission
800 North Capitol, St., NW
Washington D.C. 20573

**Re: Kanu v. Ejike Dickson Eze d/b/a Ejike International
Trade Limited, Sealines International, Seamates
International, Inc., and Maersk
FMC Docket No. 25-05**

Dear Judge Ambrow:

We represent respondent MAERSK A/S ("MAERSK") in this matter. We are writing to oppose Complainant FRANCIS SHEKA KANU's ("KANU's") request to voluntarily dismiss the Complaint without prejudice.

As MAERSK has filed a motion for summary decision, no settlement has been reached between the parties, and the parties have not entered into a stipulation, KANU may dismiss this action only under 46 C.F.R. 502.72(a)(3). Section 502.72(a)(3) provides that a complainant can voluntarily dismiss a complaint "By order of the presiding officer...on terms the presiding office considers proper."

MAERSK requests that the Complaint be dismissed with prejudice as KANU's letter, dated June 23, 2025 suggests that the claim is moot. Alternatively, MAERSK's motion for summary judgment is pending before the FMC, and MAERSK respectfully requests that its summary judgment motion be granted dismissing the Complaint against it with prejudice. KANU should not be allowed to avoid the summary judgment motion by dismissing the Complaint without prejudice and later filing a new Complaint against Maersk.

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Thank you for your consideration.

Respectfully submitted,

A handwritten signature in cursive script, appearing to read 'Narinder S. Parmar'.

Narinder S. Parmar

GWW:sk

cc: All counsel on record